



BACKPACKERS DESTINATIONS TERMS & CONDITIONS AND LIABILITY WAIVER

IMPORTANT: By booking or participating in any trip organized by Backpackers Destinations ("the Company"), the Participant confirms that they have read, understood, and voluntarily accepted these Terms & Conditions. Participation is entirely at the Participant's own risk.

1. Assumption of Risk

The Participant acknowledges that adventure travel involves inherent risks including road accidents, trekking risks, high altitude sickness, weather changes, landslides, floods, rockfalls, wildlife encounters, theft, illness, food poisoning, transportation delays, equipment failure and other unforeseen events. The Participant voluntarily assumes all such risks.

2. Nature of Services

Backpackers Destinations acts only as a travel organizer and coordinator. Transportation providers, hotels, campsites, restaurants, guides, bike rentals and activity operators are independent third parties.

3. Limitation of Liability

To the maximum extent permitted by applicable law, Backpackers Destinations, its owners, employees, trip leaders and representatives shall not be liable for any injury, illness, disability, death, loss of property, theft, delays, cancellations, missed connections, financial loss or consequential damages arising from participation in the trip, except where liability cannot legally be excluded, or arises from the Company's own proven gross negligence or willful misconduct.

3A. Cap on Liability

In any circumstance where the Company is found liable notwithstanding Clause 3, the Company's total liability to the Participant, in aggregate, shall not exceed the total trip fee paid by that Participant for the specific trip in question.

4. Third-Party Services

The Company shall not be responsible for negligence, misconduct, delays or deficiencies of third-party service providers.

5. Medical Fitness

Participants confirm they are medically fit. All medical, rescue, evacuation and hospital expenses shall be borne by the Participant.

5A. Insurance Requirement

The Participant confirms that they hold, or will obtain prior to the trip start date, a valid personal travel/accident/medical insurance policy providing coverage for the activities undertaken on the trip (including, where applicable, adventure sports, high-altitude travel, and emergency evacuation). The Participant is solely responsible for the adequacy of such coverage. The Company does not provide insurance coverage to Participants and strongly recommends Participants purchase a policy that explicitly covers the specific activities on their itinerary.

6. High Altitude

Trips to high-altitude destinations involve risks including AMS, HAPE and HACE. Participation is voluntary and at the Participant's own risk.

7. Personal Belongings

Participants are solely responsible for their personal belongings including phones, cameras, luggage, riding gear, cash and documents.

8. Code of Conduct

Illegal drugs, dangerous driving, violence, harassment, property damage or disruptive behaviour may result in immediate removal without refund.

9. Itinerary Changes

The Company may change routes, hotels, schedules or activities due to weather, safety, operational requirements or government directions without compensation.

10. Force Majeure

No liability or compensation shall arise from natural disasters, pandemics, strikes, political unrest, war, border closures, military restrictions or other events beyond reasonable control.

11. Cancellations

Cancellation and refund policy shall apply as published by Backpackers Destinations at the time of booking.

11A. Cancellation by the Traveler

Time Before Trip Start	Refund
20+ days before	75% of trip cost refunded (25% non-refundable processing/booking fee)
10–19 days before	50% of trip cost refunded
5–9 days before	25% of trip cost refunded
Less than 5 days before	No refund
No-show / mid-trip dropout	No refund

11B. Non-Refundable Components

Certain costs are paid upfront to vendors (permits, advance hotel bookings, bike rental advances) and are non-refundable regardless of cancellation timing, once incurred.

11C. Rescheduling

Travelers may request to move to a different batch of the same trip, subject to availability, up to 5 days before the original start date, at no extra charge (one reschedule per booking; further changes may attract a rescheduling fee).

11D. Cancellation by the Company

If Backpackers Destinations cancels a trip (insufficient participants, safety concerns, force majeure), travelers will be offered a full refund or the option to move to another batch/trip of equal value.

11E. Force Majeure

In case of natural disasters, government restrictions, political unrest, or other events beyond control, refunds will be processed only to the extent the Company can recover costs from its own vendors. Any unrecoverable amounts (already paid to hotels, transport, guides) will not be refunded.

11F. Medical / Emergency Cancellations

Cancellations due to medical emergencies (with valid proof) may be considered for partial refund or credit toward a future trip, at the Company's discretion.

11G. Payment of Refunds

Approved refunds will be processed within 7–10 business days to the original payment method.

12. Photography

The Company may use photographs and videos taken during the trip for promotional purposes unless the Participant informs the Company in writing before departure.

13. Indemnity

The Participant agrees to indemnify and hold harmless Backpackers Destinations from claims arising out of the Participant's own acts, omissions, misconduct or breach of these Terms.

14. Governing Law

This Agreement shall be governed by the laws of India. Courts in Hyderabad, Telangana shall have jurisdiction, subject to applicable arbitration provisions if agreed.

15. Participant Declaration

I confirm that I have read, understood and voluntarily accepted these Terms & Conditions. I understand that adventure travel carries inherent risks and I participate at my own risk. I release Backpackers Destinations to the fullest extent permitted by law from claims arising from such inherent risks, save for claims arising from the Company's own proven gross negligence or willful misconduct.

16. Property Damage

If Backpackers Destinations is required to compensate any third party for damage caused by the Participant, the Participant agrees to immediately reimburse the Company for the full amount paid, together with any associated legal fees, recovery costs, penalties, or administrative charges.

17. Late Joining & Missed Starts

Participants are required to join the trip at the designated start point on Day 1. Joining the trip mid-itinerary (e.g., on Day 3 or any day after departure) is strictly prohibited due to safety, logistics, and group coordination requirements. Any participant who fails to join on Day 1 will be considered a no-show, their booking will be forfeited, and no refunds or partial credits will be issued.

18. Minors / Participants Under 18

Participants under the age of 18 years may only join a trip if accompanied by a parent or legal guardian, or with the prior written consent of a parent/legal guardian who separately signs this waiver on the minor's behalf, accepting these Terms and Conditions and assuming responsibility for the minor's participation. The Company reserves the right to decline a minor's participation at its sole discretion.

19. Emergency Contact & Medical Disclosure

The Participant must provide accurate emergency contact details and disclose any pre-existing medical conditions, allergies, or medications relevant to the trip's activities prior to departure. Failure to disclose relevant medical information that later affects the Participant's safety or the safety of others shall not create liability for the Company.

20. Severability

If any clause of this Agreement is found invalid or unenforceable by a court of competent jurisdiction, the remaining clauses shall continue in full force and effect.

Signatures -

Signature - Backpackers Destinations

Participant name -

Signature -

Date -